

By: RS
Date: 6-23-14

FULLCOURT ENTERPRISE™ AGREEMENT

JHR
Date: 6-23-14

IN CONSIDERATION of the mutual promises and agreements provided herein, Justice Systems, Inc. (Justice Systems), whose address is 4600 McLeod NE, Albuquerque NM 87109, and Cheyenne Municipal Court, (Customer) whose mailing address is 309 W 20th St, Cheyenne, WY 82001, agree that: Justice Systems will license to Customer, rights to FullCourt Enterprise™ software (SOFTWARE) on a nonexclusive basis for Customer's use in the geographical jurisdiction described as Cheyenne, Wyoming, with site(s) located at 309 W 20th St, Cheyenne, WY 82001.

THIS AGREEMENT provides for (i) an end user LICENSE of the FullCourt Enterprise™ SOFTWARE (ii) an end user SUBLICENSE of the FullCourt Enterprise Application Server, (iii) an end user SUBLICENSE of the Oracle database (iv) specifications for the FullCourt Enterprise™ operating environment, (v) the FullCourt Enterprise™ Data Dictionary, (vi) SERVICES associated with the installation, setup, implementation and training in the use of the FullCourt Enterprise™ system and the SERVICES associated with any enhancements, modifications or customizations to the base SOFTWARE system and, (vii) the FullCourt Enterprise™ Maintenance and Support Agreement for continued maintenance and support of the system following expiration of the Warranty Period.

DEFINITIONS:

As used in this Agreement, the following words or terms shall have the meaning described as set forth below:

"ALTERNATIVE DATABASE"- shall mean any database (other than the customarily provided Oracle database) which Justice Systems has approved for use in conjunction with the FullCourt Enterprise SOFTWARE.

"CUSTOM SOFTWARE"- shall mean those deliverables, as well as documentation related thereto, which are made available by Justice Systems to Customer as part of a customization, modification, alteration, supplementation, addition or change to the STANDARD SOFTWARE and intended to be used as part of or in conjunction therewith. "CUSTOM SOFTWARE" includes all embedded components, subsystems, libraries and/or runtimes supplied by Justice Systems as part of the FullCourt Enterprise customization whether or not the same originated with Justice Systems.

"DOCUMENTATION"- shall mean all written, printed, electronic or other format materials published or otherwise made available by Justice Systems that relate to the functional, operational and/or performance capabilities of the SOFTWARE. DOCUMENTATION shall not include SOURCE CODE.

"LICENSE"- shall mean the worldwide, perpetual, personal, non-transferable, non-exclusive, license for Customer's internal use only granted by Justice Systems to use the SOFTWARE and SOFTWARE PRODUCTS under this Agreement.

"MIDDLEWARE"- shall mean the SOFTWARE layer that lies between the operating system and the application. Typically, this refers to Java Application Server and Web Server software.

"OBJECT CODE"- shall mean the binary machine readable version of the SOFTWARE.

"SERVICES"- shall mean the work done by Justice Systems in support of the SOFTWARE and SOFTWARE PRODUCTS but not limited to installation, training, consulting, on site and remote support, as well as such other SERVICES as may be mutually agreed upon by the parties.

"SOFTWARE"- shall mean the aggregate of the STANDARD SOFTWARE and the CUSTOM SOFTWARE, including all physical components, that are provided by Justice Systems, including but not limited to magnetic and digital media, job aids, templates and other similar devices, and exclusive of the SUBLICENSED systems and products not provided by Justice Systems.

"SOFTWARE PRODUCTS"- Shall mean all physical components, other than SOFTWARE, that are offered by Justice Systems, including but not limited to documentation, magnetic and digital media, CD-ROMS, job aids, templates and other similar devices.

“SOURCE CODE”- shall mean those statements in computer language, which when processed by a compiler, assembler or interpreter become executable by a computer. Unless otherwise specifically set forth in this or a separate written instrument, the use of SOURCE CODE is not authorized or granted hereunder.

“STANDARD SOFTWARE”- means the standard FullCourt Enterprise application as indicated on the LICENSE which is attached to and made a part of this Agreement. “STANDARD SOFTWARE” includes all embedded components, subsystems, libraries and/or runtimes supplied by Justice Systems as part of the FullCourt Enterprise application whether or not the same originated with Justice Systems. “STANDARD SOFTWARE” does not include the SUBLICENSED systems or any Customer-supplied software or systems which may be used in conjunction with the FullCourt Enterprise, whether the same may or may not be necessary for the performance of that system.

“SUBLICENSE”- shall mean the non-transferable, temporary, non-exclusive, license for **Customer’s** use only granted by **Justice Systems** to use the components of the STANDARD SOFTWARE licensed to **Justice Systems** by third parties under the terms and conditions of their respective license agreements. SUBLICENSED components are warranted and supported by Justice Systems as provided in the LICENSE and in the Maintenance and Support Agreement.

The following schedules are attached hereto and made a part of this Agreement:

FullCourt Enterprise™ Software License: Providing for the license provisions under which the SOFTWARE provided by **Justice Systems** may be used;

FullCourt Enterprise Operating Environment: Setting forth the operating environment intended to be used to support the SOFTWARE plus any additional software required for use by FullCourt Enterprise system. Also, providing for the responsibilities of **Customer** relating to the establishment of an operating environment compatible with the FullCourt Enterprise system;

Oracle® Sublicense Agreement: Providing for the terms and provisions governing the Oracle database (Note: **Customer** may elect to utilize an ALTERNATIVE DATABASE. This election shall be exercised in advance of the signing of this Agreement, only when made in writing and accepted by **Justice Systems**, and separately acknowledged within the body of this Agreement).

FullCourt Enterprise Application Server Sublicense Agreement: - Providing for the terms and provisions governing the application server.

Services Agreement: Setting forth the SERVICES that shall be provided by **Justice Systems**;

Maintenance & Support Agreement for FullCourt Enterprise: Setting forth the terms comprising the Agreement for maintenance and support SERVICES to be provided by **Justice Systems** after the initial warranty period has expired.

FullCourt Enterprise Data Dictionary License Agreement.

1. COST OF SOFTWARE LICENSE AND SERVICES TO BE PERFORMED:

Customer shall pay to Justice Systems the sum of ONE-HUNDRED-THIRTY-TWO-THOUSAND-THREE-HUNDRED-EIGHT DOLLARS -as follows:

a.	Total License fees in the amount of	\$	56,476
b.	Services as set forth in Services Agreement	\$	60,500
c.	Annual Maintenance and Support fees FullCourt Enterprise	\$	15,332
TOTAL			\$ 132,308

Payment is due upon receipt of invoice to be mailed or emailed to the Customer’s address above first set forth.

2. **CONFIDENTIAL INFORMATION:** **Customer** acknowledges that the SOFTWARE is a copyrighted work and that the same contains proprietary intellectual property rights. **Customer** agrees to keep the SOFTWARE, and any other products delivered by **Justice Systems** in confidence and to take all reasonable precautions to

ensure that no unauthorized persons shall have access to the same and to protect against the making of any unauthorized copies. Breach of this provision shall be construed as a material breach of the terms of this Agreement. As a consequence, in the event of such any breach, **Justice Systems**, at its sole option, may immediately terminate this Agreement without further obligation. **Customer** shall not alter any proprietary markings in connection with the SOFTWARE including copyright, trademark, trade secret, and patent legends.

Customer's obligations under this section as they relate to the use of the SOFTWARE shall include, without limitation, giving notification to authorized users of the provisions of this section; to immediately halt and report to **Justice Systems** unauthorized copying, use, distribution, installation, or transfer of possession of the licensed products by any authorized user of which **Customer** has actual knowledge.

It is understood that receipt of confidential information under this Agreement shall not create any obligations in any way limiting or restricting the assignment of **Customer's** employees.

Notwithstanding the foregoing, Confidential Information shall not include information which the recipient can demonstrate by competent written proof (a) is now, or hereafter becomes, through no act or failure to act on the part of the recipient, generally known or available or otherwise part of the public domain; (b) is rightfully known by the recipient without restriction on use prior to its first receipt of such information from the disclosing party as evidenced by its records; (c) is hereafter furnished to the recipient by a third party authorized by Justice Systems to furnish the information to the recipient, as a matter of right and without restriction on disclosure; or (d) is the subject of a written permission by the disclosing party to disclose.

Notwithstanding the foregoing, disclosure of Confidential Information shall not be precluded if:

(a) such disclosure is in response to a valid order of a court or other governmental body of the United States or any political subdivision thereof, including, but not limited to a Public Records disclosure request; provided, however, that the recipient of such Confidential Information shall first have given notice to the other party, who may make a reasonable effort to obtain a protective order requiring that the information to be disclosed be used only for the purposes for which the order was issued;

(b) such disclosure is necessary to establish rights or enforce obligations under this Agreement, but only to the extent that any such disclosure is necessary for such purpose; or

(c) the recipient of such confidential information received the prior written consent to such disclosure from **Justice Systems**, but only to the extent permitted in such consent.

The obligations hereunder with respect to each item of Confidential Information shall survive the termination of this Agreement.

3. **DATA CONVERSION:** Conversion of **Customer's** data files from **Customer's** current or prior computer systems shall be the responsibility of **Customer** unless it is specifically agreed between **Justice Systems** and **Customer** in accordance with the terms of the "SERVICES Agreement" incorporated into this Agreement.
4. **ACCEPTANCE:** The SOFTWARE shall be deemed accepted when it has been installed and passes **Justice Systems'** standard installation test procedures.
5. **CUSTOMER'S OBLIGATION FOR DATA PROTECTION:** **Justice Systems** shall not be responsible for data protection; and, **Customer** shall be responsible for performing regular back up of data on the computer system used in connection with the SOFTWARE to minimize likelihood of data loss. **Customer** shall be solely responsible for backup SOFTWARE, hardware procedures and operations. **Customer** shall provide the safe storage of all backup tapes and/or disks. **Customer** shall be responsible for keeping **Customer** computer systems free of computer viruses.
6. **COPYRIGHT & PATENT ASSURANCE:** **Justice Systems** has taken reasonable precautions against the infringement by the SOFTWARE of copyright, patent or trade secrets; and, to the best of its knowledge no portion of the SOFTWARE infringes upon the intellectual property rights of any other party. No other or additional warranties are made nor given with respect to intellectual property right infringement. Notwithstanding the above, Justice Systems shall have no duty under this Section with respect to any claim, action or proceeding arising from or related to infringements (i) by Third-Party Products, (ii) arising out of modifications to the SOFTWARE not made by or under the direction of **Justice Systems**, (iii) resulting from

use of the SOFTWARE to practice any method or process which does not occur wholly within the SOFTWARE, or (iv) resulting from modifications to the SOFTWARE or prepared pursuant to specifications or other material furnished by or on behalf of **Customer**. This Section states the entire obligation of **Justice Systems** regarding infringement of intellectual property rights, and it will survive the termination of this Agreement.

7. **TERM AND TERMINATION:** This Agreement and any supplement shall continue in force unless terminated as set forth herein. Either party may terminate this agreement upon thirty (30) days advance written notice to the other party of its intent to terminate, or immediately by **Justice Systems** if **Customer** is in breach of any confidentiality obligations or in violation of any obligations concerning use or protection of the intellectual property rights of **Justice Systems**. Any portion of this agreement and/or the schedules hereto may be independently terminated in the same manner without prejudice to the remaining portions of this agreement.

Upon the termination of the LICENSE granted by this Agreement, **Customer** shall (i) immediately cease using all SOFTWARE and SOFTWARE PRODUCTS, (ii) notify **Justice Systems** in writing that it has ceased using all SOFTWARE and SOFTWARE PRODUCTS, (iii) immediately remove from its system and operating environment all SOFTWARE and SOFTWARE PRODUCTS, (iv) notify **Justice Systems** in writing that it has completely removed from its system and operating environment all SOFTWARE and SOFTWARE PRODUCTS, (v) return to **Justice Systems** all documents and materials relating to the SOFTWARE and SOFTWARE PRODUCTS (vi) maintain confidentiality and prevent disclosure of any information and documentation relating to the SOFTWARE and the SOFTWARE PRODUCTS or the systems and procedures of **Justice Systems** as to any and all third parties, and (vii) allow **Justice Systems** to conduct reasonable remote or onsite audits of **Customer's** system and operating environment within business hours from time to time as may be requested by **Justice Systems** to ensure full compliance with these termination provisions for a period of two years.

8. **MODIFICATIONS:** The SOFTWARE may not be modified by anyone other than **Justice Systems**. Any modifications not made by Justice Systems shall nullify all warranties given and will terminate the SOFTWARE LICENSE.
9. **SEVERABILITY:** In the event that any provision of this agreement is held by a court of competent jurisdiction to be legally ineffective or unenforceable, the validity of the remaining provisions shall not be affected.
10. **INTEGRATION:** This agreement and any supplements hereto attached as schedules contain the full understanding of the parties with respect to the subject matter hereof and supersedes all prior communications, understandings and instruments relating thereto, whether orally given or made in writing. If an inconsistency arises in the interpretation of this Agreement and any of the attached schedules, supplements or any amendments thereto, that interpretation applied to the latter dated instrument shall control. No waiver, consent, modification, amendment or change of the terms of this Agreement and its supplements shall be binding unless in writing and signed by the authorized representatives of **Customer** and **Justice Systems**.
11. **ARBITRATION:** Any dispute arising out of this agreement other than claims for preliminary injunctive relief or other prejudgment remedies shall be resolved at the request of either party through binding arbitration. Arbitration shall be conducted in Albuquerque, New Mexico under the rules and procedures of the American Arbitration Association ("AAA"). The arbitration shall be by a panel of three arbitrators and, if feasible, one of the three shall possess knowledge of computer SOFTWARE and its distribution.
12. **NOTICE:** Any notice required or permitted to be given in this agreement shall be in writing and shall be sent in a manner requiring a signed receipt, or if mailed, by registered or certified mail, return receipt requested. Notice is effective upon receipt. Unless otherwise set forth in writing, **Customer** designates the address set forth above as the location for delivery of any notifications.
13. **NO WAIVER:** The failure of either party to exercise any right, or the waiver by either party of any breach, shall not prevent a subsequent exercise of such right nor be deemed a waiver of any subsequent breach of the same or any other term of the agreement.

14. **FORCE MAJEURE:** Neither party shall be deemed in default of this agreement to the extent that performance of their obligations or attempts to cure any breach are delayed or prevented by reason of any act of God, fire, natural disaster, accident, shortages of materials or supplies, or any other cause beyond the control of such party. This provision requires that any party claiming relief under this provision give written notice within fifteen (15) days of discovery thereof. In no event shall the time for performance be extended beyond 90 days.
15. **DUTIES OF CUSTOMER:** In order to ensure adequate performance and operation of FullCourt *Enterprise*, and to avoid additional cost under this Agreement **Justice Systems** will not begin installation until the requisite preparations have been completed. Should **Justice Systems** personnel arrive at **Customer's** site and be delayed in installing FullCourt *Enterprise* SOFTWARE, conducting training, or performing other contracted SERVICES because **Customer** has not adequately performed any portion of the hardware, SOFTWARE or system infrastructure implementation, or other required elements to support FullCourt *Enterprise* SOFTWARE, **Customer** will be billed for any delays, extra travel or other expenses incurred and for the stand-by time for personnel. Such delays may necessitate re-scheduling of the installation, training, and/or other SERVICES to be performed by **Justice Systems**. Charges occasioned by **Customer's** failure to otherwise comply with this sub-paragraph will be billed in accordance with **Justice Systems'** Standard Professional SERVICES Fees rates, in addition to actual "out-of-pocket" expenses incurred for travel, lodging, etc., and payable upon receipt of an itemized statement therefor.
16. **DATA DICTIONARY:** Included among the products to be delivered as a part of this Agreement is a copy of the most current version of the FullCourt *Enterprise* Data Dictionary. The use of the FullCourt *Enterprise* Data Dictionary is controlled by the terms and conditions of its license. The **Customer** acknowledges receipt of the license and that it has read and understood the same. Updates to the FullCourt *Enterprise* Data Dictionary which are necessitated by the issuance of maintenance releases to the FullCourt *Enterprise* SOFTWARE shall be provided only when the **Maintenance and Support Agreement**, remains in effect. **Customer** further understands that support for the FullCourt *Enterprise* Data Dictionary may be obtained from **Justice Systems** through direct telephone technical support (and is not included as part of the maintenance and support provided for FullCourt *Enterprise*). Telephonic Technical Support is available for the FullCourt *Enterprise* Data Dictionary providing direct telephonic assistance from a Justice Systems, Inc. technician at the rate of **\$165.00/hr**, minimum ½ hour increments (this amount being subject to change by Justice Systems at any time in the future). **Customer** agrees to pay all amounts incurred for any such support provided upon presentation of an invoice therefor.
17. **LATE FEES, COSTS, ATTORNEYS' FEES:** Late payment charges and fees shall be allowed in the amount of 1.5% per month, compounded monthly, and shall apply to any payments in arrears for a period exceeding thirty (30) days. In any legal action or arbitration brought under this agreement, the prevailing party shall be entitled to reasonable attorneys' fees and costs of litigation arbitration, or injunctive relief proceedings necessary to carry out the provisions of this agreement. This provision shall not be construed as limiting the right of **Justice Systems** to demand timely payment; nor shall it require that **Justice Systems** extend time for payment under the provisions of this Agreement.
18. **GOVERNING LAW:** This agreement shall be governed by and interpreted, construed, and enforced in accordance with the laws of the State of Wyoming.

ACCEPTED BY:

JUSTICE SYSTEMS, INC.

x _____
(Authorized signature)

BY: _____
Ernie L. Sego, President/CEO

(Type or print name)

(Date)

(Title)

(Date)

FULLCOURT ENTERPRISE™ SOFTWARE LICENSE

Date of License: ____/____/2014

Justice Systems, Inc. ("Justice Systems"), a New Mexico corporation, grants to Customer a personal, non-transferable, nonexclusive, perpetual license to use FullCourt *Enterprise* SOFTWARE and DOCUMENTATION and to use other SOFTWARE modules developed and provided by Justice Systems in conjunction therewith as identified below. By use of the STANDARD SOFTWARE and CUSTOM SOFTWARE Customer agrees to abide by the terms of this SOFTWARE LICENSE. "Definitions" as set forth in the Agreement to which this SOFTWARE LICENSE has been made a part are not repeated herein, but are hereby incorporated by reference as though fully set forth herein for the purpose of this SOFTWARE LICENSE.

Note: This SOFTWARE LICENSE is intended to cover the STANDARD SOFTWARE and CUSTOM SOFTWARE, as well as any modules that are used in conjunction therewith and as may be delivered by Justice Systems pursuant to the provisions of the underlying Agreement to which this SOFTWARE LICENSE has been made apart. Not all modules may be licensed hereunder, and the Customer should review the schedule below to determine those products for which this SOFTWARE LICENSE has been granted. The number of licensed users to the application may be different than those licensed for each module. This SOFTWARE LICENSE supercedes and replaces any and all other FullCourt *Enterprise* licenses granted to the Customer prior to the date set forth above, and does not grant the right to increase the number of concurrent users for any of the licensed products beyond the number identified herein. Acceptance of this SOFTWARE LICENSE and use of the products licensed hereunder supersedes and replaces all previously granted LICENSES only to the extent that they conflict with this SOFTWARE LICENSE.

The SOFTWARE LICENSE granted herein authorizes the use of the SOFTWARE only in OBJECT CODE format (and does not grant any rights to SOURCE CODE) for the purposes of creating, updating, and/or deleting information or data of Customer by no more than **TEN (10)** concurrent users, and may be used for View-Only access of information or data of Customer by no more than **TWO (2)** concurrent users. A "concurrent user" is anyone authorized by Customer who is signed onto the application through a workstation as permitted by the application (any such user simultaneously signed on through more than one (1) workstation will only be counted as a single user). Customer shall assure compliance with the conditions of this license and will permit Justice Systems to perform reasonable audits and on-site inspections of the SOFTWARE, and its use. The SOFTWARE shall be used only within the geographical jurisdiction of Customer and at such sites as are identified in writing to Justice Systems. Customer shall not make copies of the SOFTWARE, nor shall Customer sell, assign, give or permit a security interest to be taken herein or otherwise convey or allow any other person or entity to use the SOFTWARE without prior written consent of Justice Systems. Customer shall not cause or permit reverse engineering, derivation of SOURCE CODE, disassembly, decompilation of the SOFTWARE nor disclose nor permit access to the SOFTWARE by any unauthorized third party without the written consent of Justice Systems. Customer shall not create derivative works from, adapt, translate or use any portion of the SOFTWARE except as otherwise specifically permitted in this SOFTWARE LICENSE. Customer shall not disclose results of benchmark tests of the SOFTWARE. Customer acknowledges that Customer obtains no ownership rights in the SOFTWARE and that the SOFTWARE is the proprietary product of Justice Systems and is protected by copyright and other intellectual property laws. Customer shall have the right to use the SOFTWARE in the operating environment identified by Customer to Justice Systems.

No database relationships shall be modified, nor shall any writing of data into the database be performed by Customer, at Customer's direction, or with Customer's knowledge and consent.

Once installed by Justice Systems, Customer may not copy onto or transfer the SOFTWARE to any other device(s) than that upon which originally installed, except in the case of one-to-one transfers to new hardware installations, in which case such hardware shall conform to any prerequisites of this SOFTWARE LICENSE or accompanying SUBLICENSES and that the use of the SOFTWARE installed on the pre-existing hardware will terminate immediately. Notwithstanding the terms of this subparagraph, Customer may temporarily transfer the SOFTWARE onto another device if the original device becomes inoperable or is malfunctioning.

Additionally, **Customer** is authorized to use in conjunction with the SOFTWARE the following modules / features, which have been identified by the initials of an authorized representative of **Justice Systems**, for the number of concurrent users indicated next to the description of each module:

Per User/Seat Licensed Modules:

Initials: <u> N/A </u>	FullCourt <i>Enterprise</i> Jury Management Module Number of Licensed Users (<u> N/A </u>)
Initials: <u> </u>	FullCourt <i>Enterprise</i> Batch Scanning Module Number of Licensed Seats (<u> ONE </u>)

Licensed Users Same As Number of Concurrent Users of SOFTWARE:

Initials: <u> </u>	FullCourt <i>Enterprise</i> Imaging Module
-----------------------------	--

Unlimited Public Access Users of SOFTWARE

Initials: <u> N/A </u>	FullCourt <i>Enterprise</i> unlimited Public Access users; provided with CPU licenses for Oracle and FullCourt <i>Enterprise</i> Application Server
--------------------------	---

JUSTICE SYSTEMS WARRANTS THAT IT OWNS ALL RIGHTS, TITLE, AND INTEREST IN AND TO THE SOFTWARE DESCRIBED AND IDENTIFIED IN THIS LICENSE.

JUSTICE SYSTEMS WARRANTS THAT FOR 90 DAYS FROM THE DATE OF INSTALLATION THAT THE LICENSED AND SUBLICENSED SOFTWARE SHALL SUBSTANTIALLY CONFORM TO THE FUNCTIONAL SPECIFICATIONS DESCRIBED IN DOCUMENTATION PROVIDED BY JUSTICE SYSTEMS A.ND WHEN OPERATED IN THE DESIGNATED OPERATING ENVIRONMENT.

JUSTICE SYSTEMS DOES NOT WARRANT THAT THE OPERATION OF THE LICENSED AND SUBLICENSED SOFTWARE OR OF THE APPLICATION WILL BE UNINTERRUPTED AND ERROR FREE.

JUSTICE SYSTEMS DOES NOT WARRANT AGAINST INTERFERENCE WITH ENJOYMENT OF INFORMATION.

THIS WARRANTY IS EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES. IF CUSTOMER GIVES NOTICE OF AN ERROR OR INABILITY OF THE LICENSED AND SUBLICENSED SOFTWARE TO SUBSTANTIALLY PERFORM AS SET FORTH HEREIN JUSTICE SYSTEMS SHALL, AT ITS OPTION, RESOLVE THE ERROR OR INABILITY TO PERFORM BY CORRECTING OR REPLACING THE SOFTWARE, OR PROVIDE A REASONABLE WORK-AROUND FOR THE ERROR OR INABILITY, OR SHALL REFUND THE LICENSE FEES PAID UNDER THIS AGREEMENT AND TERMINATE THE LICENSE.

WARRANTY OF LAW: JUSTICE SYSTEMS REPRESENTS AND WARRANTS THAT TO THE BEST OF ITS KNOWLEDGE: (I) THERE IS NO CLAIM, LITIGATION OR PROCEEDING PENDING OR THREATENED AGAINST JUSTICE SYSTEMS WITH RESPECT TO THE COMPUTER SOFTWARE PROVIDED TO CUSTOMER OR ANY COMPONENT THEREOF ALLEGING INFRINGEMENT OF ANY PATENT OR COPYRIGHT OR ANY TRADE SECRET OR ANY PROPRIETARY RIGHT OF ANY PERSON; (II) THE COMPUTER SOFTWARE PROVIDED TO CUSTOMER COMPLIES IN ALL MATERIAL RESPECTS WITH APPLICABLE LAWS, RULES AND REGULATIONS; (III) JUSTICE SYSTEMS HAS FULL AUTHORITY TO ENTER INTO THIS AGREEMENT AND TO CONSUMMATE THE TRANSACTIONS CONTEMPLATED HEREBY; AND (IV) THIS AGREEMENT IS NOT PROHIBITED BY ANY OTHER AGREEMENT TO WHICH JUSTICE SYSTEMS IS A PARTY OR BY WHICH IT MAY BE BOUND.

IN THE EVENT OF A BREACH OF THIS WARRANTY OF LAW, JUSTICE SYSTEMS SHALL INDEMNIFY AND HOLD HARMLESS THE CUSTOMER FROM AND AGAINST ANY AND ALL HARM, INJURY, DAMAGES, COSTS, LOSSES, LIABILITIES, SETTLEMENT AMOUNTS AND EXPENSES, INCLUDING REASONABLE ATTORNEYS' FEES AND EXPENSES, INCURRED BY JUSTICE SYSTEMS ARISING OUT OF SAID BREACH.

JUSTICE SYSTEMS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL OR

CONSEQUENTIAL DAMAGES OR OTHER DAMAGES FOR LOST REVENUE, LOST OPPORTUNITY, LOST DATA OR DATA USE INCURRED BY CUSTOMER OR ANY THIRD-PARTY AND IN ANY EVENT, ANY LIABILITY OF JUSTICE SYSTEMS SHALL NOT EXCEED THE AMOUNT PAID BY CUSTOMER FOR THE SOFTWARE; PROVIDED, HOWEVER, THAT THIS LIMITATION SHALL NOT APPLY TO JUSTICE SYSTEM'S INDEMNIFICATION OBLIGATIONS FOR WARRANTY OF LAW AS SET FORTH, ABOVE.

EXCEPT AS SET FORTH IN THIS AGREEMENT, JUSTICE SYSTEMS MAKES NO IMPLIED REPRESENTATIONS OR WARRANTIES WITH RESPECT TO THE SOFTWARE AS TO MERCHANTABILITY OR FITNESS FOR ANY PARTICULAR PURPOSE.

CUSTOMER RECOGNIZES THAT PORTIONS OF THE SOFTWARE MAY INCLUDE OPEN SOURCE CODE DERIVED FROM OTHER SOURCES THAN JUSTICE SYSTEMS AND THAT WITH RESPECT TO THAT SOURCE CODE, JUSTICE SYSTEMS HAS TAKEN REASONABLE PRECAUTIONS AND TO THE EXTENT REASONABLY POSSIBLE USED DUE DILIGENCE IN ASSURING THAT THE SOFTWARE PROVIDED IS FREE OF THIRD-PARTY CLAIMS OF COPYRIGHT OR PATENT INFRINGEMENT.

FULLCOURT ENTERPRISE MAY INCLUDE RUNTIME PRODUCTS OF THIRD-PARTY VENDORS IN ORDER TO PROVIDE ADDITIONAL FUNCTIONALITY FOR THE BENEFIT OF CUSTOMER. CUSTOMER AGREES NOT TO ALTER, DISASSEMBLE, DECOMPILE, TRANSLATE, ADAPT OR REVERSE-ENGINEER ANY SUCH RUNTIME PRODUCT OR THE PROPRIETARY PRODUCTS CREATED THEREWITH (E.G., WITH RESPECT TO REPORT GENERATION TOOLS THE .RPT REPORT FILE FORMAT); NOT TO DISTRIBUTE THE RUNTIME PRODUCTS TO ANY THIRD-PARTY; NOT TO USE THE RUNTIME PRODUCTS TO CREATE FOR DISTRIBUTION A PRODUCT THAT IS GENERALLY COMPETITIVE WITH THOSE RUNTIME PRODUCT(S) PROVIDED BY JUSTICE SYSTEMS; AND, NOT TO USE THE RUNTIME PRODUCTS ON A RENTAL OR TIMESHARING BASIS OR TO OPERATE A SERVICE BUREAU FOR THE BENEFIT OF THIRD PARTIES. WITH RESPECT TO THOSE RUNTIME PRODUCT(S) LICENSED BY BUSINESS OBJECTS, S.A, OR ANY OF ITS SUBSIDIARIES, CUSTOMER AGREES NOT TO USE THE RUNTIME PRODUCT(S) TO CREATE FOR DISTRIBUTION A PRODUCT THAT CONVERTS THE REPORT FILE (.RPT) FORMAT TO AN ALTERNATIVE REPORT FILE FORMAT USED BY ANY GENERAL PURPOSE REPORT WRITING, DATA ANALYSIS OR REPORT DELIVERY PRODUCT THAT IS NOT THE PROPERTY OF BUSINESS OBJECTS, S.A, OR ANY OF ITS SUBSIDIARIES.

THIS WARRANTY EXTENDS ONLY TO THE CUSTOMER IDENTIFIED IN THE BODY OF THIS LICENSE AGREEMENT, OR THE UNDERLYING AGREEMENT TO WHICH IT HAS BEEN MADE AN ATTACHMENT. SUBSEQUENT TRANSFEREES MUST ACCEPT THE APPLICATION "AS IS" AND WITH NO WARRANTIES OF ANY KIND. ANY AND ALL WARRANTIES AND INDEMNIFICATIONS PROVIDED BY THIS LICENSE SHALL BE NULL AND VOID AS TO THE SOFTWARE, SOFTWARE PRODUCTS AND SERVICES WHERE NONCOMPLIANCE IS CAUSED BY OR RELATED TO (1) ACTS OR OMISSIONS OF OTHERS THAN JUSTICE SYSTEMS PERSONNEL, ITS AGENTS OR THIRD PARTIES; (2) MISUSE, THEFT, VANDALISM, FIRE, WATER OR OTHER PERIL; (3) MOVING OR RELOCATION NOT AUTHORIZED BY JUSTICE SYSTEMS; (4) ANY ALTERATIONS OR MODIFICATIONS MADE TO THE SOFTWARE BY CUSTOMER, ITS AGENTS OR REPRESENTATIVES, ACCIDENT, ABUSE, MISAPPLICATION, FAILURE TO FOLLOW CORRECT PROCEDURES FOR STARTING UP THE SYSTEM OR SHUTTING IT DOWN, OR BY INTRODUCTION OF ANY NEW SOFTWARE OTHER THAN IN THE OPERATING ENVIRONMENT SPECIFIED BY JUSTICE SYSTEMS; (6) FAILURE OF CUSTOMER TO ADEQUATELY PROVIDE FOR DATA SECURITY AND REASONABLE PROTECTION AGAINST VIRUSES, WORMS OR OTHER DESTRUCTIVE SOFTWARE MECHANISMS; OR (7) CODING, INFORMATION, OR SPECIFICATIONS CREATED OR PROVIDED BY CUSTOMER.

Notwithstanding any other provision of this Agreement **Justice Systems** may terminate this SOFTWARE LICENSE agreement immediately if **Customer** (a) fails to make any LICENSE fee payment as set forth by agreement; or, (b) commits a material breach of any of its obligations provided for under this LICENSE, which breach is not remedied or cured within sixty (60) days after notice thereof by **Justice Systems** to **Customer**. Upon termination, **Customer** shall immediately cease to use the SOFTWARE and shall immediately deliver to **Justice Systems** all copies of the

SOFTWARE or any other property of **Justice Systems** relating to the SOFTWARE and shall certify in writing that these terms have been fulfilled.

Customer recognizes that money damages may not be an adequate remedy for its breach or violation of the terms of this SOFTWARE LICENSE, or threatened breach or violation, and injunctive relief or other equitable remedies shall be available to **Justice Systems** as a remedy in addition to any other remedies available under the law. Any dispute relating to the terms of this license other than claims for preliminary injunctive relief or other equitable remedies shall be resolved at the request of either party through binding arbitration. Arbitration shall be conducted in Albuquerque, New Mexico under the rules and procedures of the American Arbitration Association. This provision, and the rights created hereunder, shall survive termination of the Agreement.

Customer
Initials

FullCourt Enterprise™ Data Dictionary License Agreement

For good and valuable consideration **Justice Systems, Inc.**, a New Mexico corporation, hereby grants to Customer, (hereinafter "**Licensee**") a LICENSE for the FullCourt Enterprise Data Dictionary, as follows:

The FullCourt Enterprise Data Dictionary is the exclusive proprietary property of Justice Systems, Inc., a New Mexico corporation. As such, its use and products created as a result of its use (and the technology disclosed therein) are strictly governed by the terms of the original FullCourt Enterprise LICENSE and other licenses which may accompany the FullCourt Enterprise Court Case Management System.

Use, disclosure, extraction from and any other information derived as a result of this disclosure of the FullCourt Enterprise Data Dictionary is further governed, as follows:

- 1- The FullCourt Enterprise Data Dictionary is protected in accordance with the provisions of the Justice Systems, Inc. copyright to FullCourt Enterprise;
- 2- The FullCourt Enterprise Data Dictionary is licensed, not sold, by Justice Systems, Inc. It shall remain proprietary to and a trade secret of Justice Systems, Inc. which retains the title, ownership and intellectual property rights in and to the FullCourt Enterprise Data Dictionary;
- 3- The **Licensee** may not modify, network, rent, lease, loan, sublicense, assign, or otherwise transfer, pledge, or encumber the FullCourt Enterprise Data Dictionary, in whole or in part;
- 4- The FullCourt Enterprise Data Dictionary contains trade secrets, and the **Licensee**, or its assignees, may not decompile, reverse engineer, disassemble, or otherwise manipulate any components of FullCourt Enterprise or the FullCourt Enterprise Database so as to disclose trade secrets, or for any other purpose;
- 5- The FullCourt Enterprise Data Dictionary described herein, and any modifications, updates, revisions, corrections or additions thereto, shall be used only for the purpose of providing **Licensee** with information pertaining to the FullCourt Enterprise Database so that **Licensee** might read data contained in the FullCourt Enterprise Database for the purpose of extracting, exporting, ad hoc inquiry and reporting;
- 6- Under no circumstances may any product developed by **Licensee**, or its assignees, modify, enhance or in any way affect the FullCourt Enterprise database structure. Any such modifications to the FullCourt Enterprise Database shall immediately void any and all warranties, and maintenance obligations of Justice Systems, Inc., and other obligations of Justice Systems, Inc. under the then existing FullCourt Enterprise license agreement;

This license to the FullCourt Enterprise Data Dictionary is an extension of the original SOFTWARE LICENSE and shall terminate at such time as the original SOFTWARE LICENSE; **Licensee** shall keep the FullCourt Enterprise Data Dictionary and DOCUMENTATION in confidence and take all reasonable precautions to ensure that no unauthorized persons have access to the same.

Customer
Initials

**FULLCOURT ENTERPRISE™
OPERATING ENVIRONMENT AGREEMENT**

Standard Configuration:

FullCourt *Enterprise* is supported by four different components, each of which may be implemented on separate hardware platforms. These components are:

- FullCourt *Enterprise* Java application/web server. Justice Systems requires FullCourt *Enterprise* Application Server as the application / web server for FullCourt *Enterprise*. The server running the application / web server must use either a Windows Server 2008 / 2012 or later or a Redhat Linux v5 or later operating system that is compatible with FullCourt *Enterprise* Application Server or such other MIDDLEWARE products as **Justice Systems** may approve.
- Database server containing FullCourt *Enterprise* application data. The standard database is Oracle 11g and the server running the database server must use either a Windows Server 2008 / 2012 or later or a Redhat Linux v5 or later operating system.
(Note: If **Customer** intends to provide and use an ALTERNATIVE DATABASE as the FullCourt *Enterprise* database, the following shall apply:
 - **Customer** shall properly license and install the ALTERNATIVE DATABASE as specified by **Justice Systems** or as the parties mutually agree
 - **Customer** will maintain and support the ALTERNATIVE DATABASE and database environment
 - **Justice Systems** will assist the **Customer** in configuring the ALTERNATIVE DATABASE to enable it to work in conjunction with FullCourt *Enterprise*, but cannot make any assurances or guarantees with respect thereto.)
- Workstations supporting the browser based user interface. **Justice Systems** currently requires Microsoft Internet Explorer v9 or later or Google Chrome v23 or later as the browser for FullCourt *Enterprise* but will designate at the time of installation the appropriate version (in the event of change).

Performance of the overall system is the result of a combination of products working together in harmony. Inasmuch as both parties will be independently providing and responsible for maintaining various components of the system, the parties mutually recognize that no assurances can be made by **Justice Systems** as to the final performance of the SOFTWARE. The parties agree to work together to achieve optimum performance results to the extent that the same may be reasonably obtained.

Justice Systems Will Provide:

It is understood that the FullCourt *Enterprise* System utilizes the Oracle database and that **Justice Systems** will provide the Oracle database with FullCourt *Enterprise*.

It is understood that the FullCourt *Enterprise* System utilizes FullCourt *Enterprise* Application Server MIDDLEWARE and that **Justice Systems** will provide this MIDDLEWARE with FullCourt *Enterprise*.

Justice Systems will provide as a part of the implementation contemplated by this Agreement all necessary SOFTWARE and SOFTWARE PRODUCTS for the operation of the FullCourt *Enterprise* System, including Enterprise Service Bus.

Customer Will Provide:

Any and all other components of the operating environment will be provided by **Customer**, including without limitation, the following:

- All hardware, including workstations and servers
- Compatible operating systems
- All networking components
- All printers and scanners
- Microsoft Word
- A compatible internet browser
- All backup system components
- Java Virtual Machine
- Java Development Kit

Customer Preparation Responsibilities:

The **Customer** must have the complete hardware and networking infrastructure in place and operational before the installation of the STANDARD SOFTWARE and/or CUSTOM SOFTWARE. This includes:

1. Assuring that all hardware (server/workstations/Local Area Network/ printers/Internet access with ports 80 and 443 unblocked/tape backup system etc.) is fully tested and operational prior to the FullCourt *Enterprise* installation.
2. Assuring that Internet access is available to the server and workstations in order to support remote installation and diagnosis. If any component is to be installed on servers running Linux, at least one (1) Windows workstation with Internet access should also have X Server SOFTWARE installed so that the server(s) may be accessed for installation, configuration and maintenance.

The entire system (including Internet connection) must be fully tested and operational prior to the installation of the **Justice Systems'** provided SOFTWARE. Customer must contact **Justice Systems** with any questions regarding the required hardware/software necessary to run the Justice Systems' products. In order to assure that the proper hardware, networking, and operating system infrastructure, etc. is installed and fully operational, **Justice Systems** will conduct a preliminary installation conference call with the appropriate **Customer** staff (including Information Systems personnel).

The operating environment will be configured by Customer pursuant to the provisions of the most currently published version of the "FullCourt *Enterprise* Recommended System Configuration" which will be provided to **Customer** by **Justice Systems**.

Customer
Initials _____

Oracle® SUBLICENSE Agreement

Justice Systems grants to Customer a SUBLICENSE to use Oracle® software (ORACLE) in conjunction with the FullCourt *Enterprise* software provided by Justice Systems to Customer. This SUBLICENSE is subject to the terms and conditions of the underlying Agreement to which this SUBLICENSE Agreement has been made a part, as well as the following terms.

- 1) For the purposes of this SUBLICENSE, ORACLE shall be utilized only for the purpose of running FullCourt *Enterprise* or such other programs as may be provided by Justice Systems to Customer.
- 2) ORACLE may not be used to create or alter tables or reports except as necessary for operating FullCourt *Enterprise* software.
- 3) The right to use ORACLE is a nonexclusive, nontransferable right granted Customer by Justice Systems to use only the object code of ORACLE provided by Justice Systems with the FullCourt *Enterprise* software license granted concurrent hereto and the ORACLE user guides and manuals.
- 4) ORACLE will be provided by Justice Systems and shall be used only with FullCourt *Enterprise*.
- 5) Justice Systems will install ORACLE as provided by the agreement(s) referred to above.
- 6) Each copy of ORACLE shall be for the Customer's own internal use within the limits of its geographic jurisdiction. The ORACLE program shall not be transferred except for temporary transfer in the event of computer malfunction.
- 7) The Customer shall not transfer, assign, timeshare, rent, lease, provide subscription services, act as a service bureau for the use of the licensed products or otherwise use ORACLE except with FullCourt *Enterprise*.
- 8) Oracle Corporation shall retain all title, copyright, and other proprietary rights in ORACLE and any modifications or translations thereof. The Customer does not acquire any rights in ORACLE other than the limited rights specified in this SUBLICENSE.
- 9) Customer shall not reverse engineer, disassemble, decompile or duplicate ORACLE except for it may duplicate a single backup or archival copy.
- 10) Customer shall not remove or modify any program markings, nor any notice of proprietary rights of Oracle Corporation.
- 11) Customer shall not hold Oracle Corporation or Justice Systems liable for any damages, whether direct, indirect, incidental, or consequential, arising from the use of ORACLE.
- 12) Customer shall, at the termination of the sublicense, discontinue use and destroy or return to Justice Systems all copies of ORACLE and DOCUMENTATION.
- 13) Customer shall not publish any results of benchmark tests run on ORACLE.
- 14) Customer shall not engage in any deceptive or misleading practices that may be detrimental to Oracle Corporation or the program herein offered.
- 15) Customer shall comply fully with all relevant export laws and regulations of the United States to assure that neither ORACLE, nor any direct product thereof, are exported, directly or indirectly, in violation of United States law.
- 16) To the extent permitted by law, Oracle Corporation is a third party beneficiary of this SUBLICENSE agreement.
- 17) Justice Systems does not provide any warranty for ORACLE separate and apart from such warranties as are provided by Oracle Corporation.
- 18) Customer agrees to cooperate with any audit of the use and distribution of ORACLE conducted by Justice Systems, or any other entity acting for or in behalf of Oracle Corporation.
- 19) Customer shall submit for review by Justice Systems samples of any ad hoc reports created using FullCourt *Enterprise* data whether generated by components of the FullCourt *Enterprise* system or external applications.
- 20) The provisions of the Uniform Computer Information Transactions Act shall not apply to this sublicense or the FullCourt license granted herewith.

Products Applicable to this Sublicense:

Item #	Application Specific Program	Maximum Server Size	Description	Qty	Price per License	Total License Charge
1	Oracle Standard Edition One	Two Sockets	Oracle Relational Database System Version 11g, Application Specific, Named User Plus Licenses	12	N/C	N/C
TOTAL APPLICATION SPECIFIC LICENSE CHARGE					\$	N/C

Customer
Initials _____

FullCourt *Enterprise* Application Server SUBLICENSE Agreement

Justice Systems grants to Customer a SUBLICENSE to use FullCourt *Enterprise* Application Server software (FCE-AS) in conjunction with the FullCourt *Enterprise* software provided by Justice Systems to Customer. This SUBLICENSE is subject to the terms and conditions of the underlying Agreement to which this SUBLICENSE Agreement has been made a part, as well as the following terms.

- 1) For the purposes of this SUBLICENSE, FCE-AS shall be utilized only for the purpose of running FullCourt *Enterprise* or such other programs as may be provided by Justice Systems to Customer.
- 2) The right to use FCE-AS is a nonexclusive, non-transferable SUBLICENSE granted Customer by Justice Systems to use only the object code of FCE-AS provided by Justice Systems with the FullCourt *Enterprise* software LICENSE granted concurrent hereto and the FCE-AS user guides and manuals.
- 3) FCE-AS will be provided by Justice Systems and shall be used only with FullCourt *Enterprise* or such other programs as may be provided by Justice Systems to Customer.
- 4) Justice Systems will install FCE-AS as provided by the agreement(s) referred to above.
- 5) Each copy of FCE-AS shall be for the Customer's own internal use within the limits of its geographic jurisdiction. The FCE-AS program shall not be transferred except for temporary transfer in the event of computer malfunction.
- 6) The Customer shall not transfer, assign, timeshare, rent, lease, provide subscription services, act as a service bureau for the use of the licensed products or otherwise use FCE-AS except with FullCourt *Enterprise*.
- 7) The Customer does not acquire any rights in FCE-AS other than the limited rights specified in this SUBLICENSE.
- 8) Customer shall not reverse engineer, disassemble, decompile or duplicate FCE-AS except for it may duplicate up to two (2) copies for backup and/or archival purposes.
- 9) Customer shall not remove or modify any program markings, nor any notice of proprietary rights. All trademarks, trade names, logos and notices present will be preserved and not deliberately defaced, modified or obliterated except by normal wear and tear. Customer shall not use any trademarks without express written authorization.
- 10) Customer shall not hold Justice Systems liable for any damages, whether direct, indirect, special, incidental, or consequential, arising from the use of FCE-AS.
- 11) Customer shall, at the termination of the SUBLICENSE, promptly discontinue use and return to Justice Systems all copies of FCE-AS and Documentation.
- 12) Customer shall not publish any results of benchmark tests run on FCE-AS.
- 13) Customer shall not engage in any deceptive or misleading practices that may be detrimental to the program herein offered.
- 14) Customer shall comply fully with all relevant export laws and regulations of the United States to assure that neither FCE-AS, nor any direct product thereof, are exported, directly or indirectly, in violation of United States law or laws of any other country.
- 15) Justice Systems does not provide any warranty for FCE-AS separate and apart from such warranties as are provided in the software license.
- 16) Customer agrees to cooperate with any audit of the use and distribution of FCE-AS conducted by Justice Systems.
- 17) The provisions of the Uniform Computer Information Transactions Act shall not apply to this sublicense or the FullCourt license granted herewith.

Products Applicable to this Sublicense:

Item #	Application Specific Program	Maximum Server Size	Description	Qty	Price per License	Total License Charge
1	FCE-AS	6 Cores	FCE Application Server Application Specific, Perpetual CPU Licenses	1	N/C	N/C
TOTAL APPLICATION SPECIFIC LICENSE CHARGE					\$	N/C

Customer
Initials _____

Services Agreement

WHEREAS, Justice Systems, Inc., (**Justice Systems**) and **Customer** have simultaneously herewith or previously entered into an agreement for the licensing of software designed, developed or otherwise provided by **Justice Systems**; and,

WHEREAS, the parties recognize that continued use and operation of the licensed products by **Customer** may from time-to-time require modification, upgrade or enhancement and that **Justice Systems** is willing to obligate itself to provide same for the benefit of **Customer** in accordance with the terms of this Agreement;

IN CONSIDERATION of the mutual promises and undertakings provided herein, the parties agree as follows:

- 1- That **Customer** may purchase from **Justice Systems** professional services related to the design, development, set-up and implementation of the FullCourt[®], FullCourt Enterprise[™], and /or FullCase[®] Case Management System, their associated modules, add-ons and extensions, as well as any other software products as the latter shall be willing to provide and support;
- 2- That the professional services to be provided in accordance with the foregoing subparagraph may include obtaining specifications, consulting, pre-installation, installation, set-up, training, project management, software modification, and such other services as **Justice Systems** may provide; and,
- 3- That the description of these professional services and the parties' relative responsibilities with respect thereto, are set forth in the succeeding paragraphs (the parties acknowledge that this list is not all-inclusive but representative of those types of services which may be provided).

Services & Responsibilities:

The following services will be provided:

	Description	Price
a.	Remote Installation and Setup of FullCourt Enterprise	4,750
b.	5 Days End-User Training On-Site in Cheyenne including Travel Expenses	13,000
c.	Remote Setup and Testing of Standard Law Enforcement RMS Batch Interface: Disposition Export and Warrant Export/Import	2,000
d.	Remote Setup and Testing of Standard Citation Import Batch Interface	2,000
e.	Remote Installation, Setup, and 1 Day Remote Training for Imaging Module	3,750
f.	Justice Systems will perform a mapped Data Conversion from the existing New World system to the FullCourt Enterprise database. The scope of this data conversion will include the following data tables only: Parties Cases (include judge) Charges (including violation date, officer, disposition, disposition date, and finding) Case Roles (defendant and victim) Statutes Agencies Officers Judges Register of Actions (no legacy ROA codes or mapping to FCE events) Balance Due on Case/Charge (to be provided as text in an ROA) Attorneys This data conversion will NOT include converting the following data tables among others: Prosecutors Case Status History Hearings Minutes Warrants Subpoenas Summons Financials, including Assessments, Payments, Bonds, etc.	35,000
Total Services:		\$ 60,500

a- **Customer Preparation Responsibilities:**

The **Customer** must have the complete hardware and networking infrastructure in place and operational before the installation of the STANDARD SOFTWARE and/or CUSTOM SOFTWARE. This includes:

3. Installation of the printers, database and other related SOFTWARE.
4. Assuring that all hardware (server/workstations/Local Area Network/ printers/Internet access with ports 80 and 443 unblocked/tape backup system etc.) is fully tested and operational prior to the FullCourt *Enterprise* installation.
5. Internet access must be available to the server and workstations in order to support remote installation and diagnosis. If any component is to be installed on servers running either UNIX or Linux, at least one (1) Windows workstation with Internet access should also have X Server SOFTWARE installed so that the server(s) may be accessed for installation, configuration and maintenance.
6. Installation of Internet Explorer (the version as designated by **Justice Systems**);

The entire system (including Internet connection) must be fully tested and operational prior to the installation of the **Justice Systems**' provided SOFTWARE. Customer must contact **Justice Systems** with any questions regarding the required hardware/software necessary to run the Justice Systems' products. In order to assure that the proper hardware, networking, and operating system infrastructure is installed and fully operational, **Justice Systems** will conduct a preliminary installation conference call with the appropriate **Customer** staff (including Information Systems personnel).

b- **Installation:**

Justice Systems will install SOFTWARE onto the **Customer's** server(s).

For those SOFTWARE products which require the FullCourt *Enterprise* Application Server MIDDLEWARE for the proper operation of the SOFTWARE, **Justice Systems** will remotely install and configure the same.

c- **Training:**

To initiate the product installation, **Justice Systems** will send the **Customer** a product installation kit, containing several forms that need to be completed by the **Customer** and which will serve as the basis for customized setup of the product. The table set-up should be completed prior to training.

d- **Programming Services:**

Any requests for Programming Services that **Justice Systems** is willing to accommodate shall be managed in a two (2) phase process.

Phase I will be the analysis portion of any programming work—that period of time when both the **Customer** and **Justice Systems** are working closely to communicate requirements, designs, work plans and the like—and Justice Systems

Phase II applies to the period after which the delivery of designs has been made and plans have been agreed upon.

Given this dual phased approach to Programming Services, a "workflow" process is intended to provide for a well-defined and cooperative environment:

- Each request for Programming Services will be submitted by the **Customer** in writing and with as much detail as reasonably possible given the existent circumstances. Whenever practical, requests for multiple Programming Services will be submitted simultaneously to become part of a single "project".
- Each request will incorporate written documents that may more clearly apprise **Justice Systems** of the desired functionality and assist in the design process.
- All requests for Programming Services shall be submitted in behalf of the **Customer** by an authorized Project Management personnel (PM), so stating that the request has been authorized and that sufficient funding for the Phase I commitment is available.

- The written request will be submitted to a designated **Justice Systems** Client Manager, who will acknowledge receipt of same in writing and either simultaneously with that acknowledgement, or within a reasonable time thereafter, provide the **Customer** PM the Tracker Issue Number(s) assigned to the request.
- The acknowledgment and assignment of a Tracker Issue Number will constitute **Justice Systems'** acceptance of the request to begin analysis and design work toward the development of final specifications and a work plan. Phase I charges in accordance with the schedule set forth at the end of this Services Agreement will begin to be incurred at this point and continue until either of these events occurs: (a) the **Customer** PM communicates in writing to the **Justice Systems** Client Manager that the requested Programming Services has been withdrawn; or (b) the final specifications and Final Work Plan have been accepted by the **Customer** and a Purchase Order has been timely submitted to **Justice Systems**. All Phase I charges incurred up to this point and time will become due and payable as specified in the Payment section below.

Analysis and Design:

- Upon acknowledgment of the requested Programming Services, **Justice Systems** will begin initial analysis toward the Design and the definition of a Preliminary Work Plan. This analysis will most likely involve participation of resources from within the **Customer's** staff. The Justice System Client Manager, together with the **Customer** PM, will coordinate the assignment and commitment of resources for this purpose.
- The completion of analysis work will take place following one or more of the following: conference calls among resources, email communications, web meetings and (where necessary) on-site meetings, as well as any other forms of communication and information exchanges as the parties mutually agree to be reasonably required in achieving the goals of the analysis.
- Analysis work, the design, specifications and Work Plans (both Preliminary and Final) are intended to be elements of an overall "process" involving the exchange of ideas, questions, concepts and, as necessary, written instruments demonstrating screen mockups, reports, etc.,. Sometimes a single event or meeting may be all that is required for the parties to sufficiently appreciate the request. An iterative process will more likely be the standard.

Final Specifications and Final Work Plan:

- Products of the Analysis and Design work will be:
 - Preliminary Design Specification(s);
 - A Preliminary Work Plan;
 - A Quote based upon the Preliminary Design Specifications and Preliminary Work Plan which will be submitted by **Justice Systems** to the **Customer** for review, comment and approval. Based upon the **Customer** feedback, these deliverables will be finalized.
- Upon the **Customer's** approval of the Final Design Specification(s), **Justice Systems** will prepare and submit simultaneously, or within a reasonable time thereafter, a proposed Final Work Plan and Fixed Price Proposal. The Final Work Plan will outline the anticipated schedule for completion of the modification(s) outlining timeframes and deliverables.
- The Final Work Plan, and included schedules, will be dependent upon receipt by **Justice Systems** of a Purchase Order for the contemplated Programming Services within the timeframe set forth in the proposed Plan. Failure to timely provide the Purchase Order, or other changes to the proposed Final Work Plan, may result in the necessity to adjust other timeframes or scheduling.
- A Purchase Order will be required before **Justice Systems** will begin the performance of Services set out in the Quote (Phase II).

Change Orders:

- All requests from the **Customer** for Change Orders to the agreed upon specifications shall be submitted in writing to the **Justice Systems** Client Manager, and the parties will employ the same procedures outlined for submission of originating requests.

- Change Orders not affecting the approved Programming Services, Final Design Specifications or Final Work Plan will be treated as “new” requests and assigned as being new Projects.
- Change Orders or subsequent requests affecting the approved Programming Services, Final Design Specifications or Final Work Plan may require amendments to any, or all, such instruments, including changes to the agreed upon fixed costs. Therefore, all Change Orders will first be analyzed and work performed on account thereof charged in accordance with the Phase I process.
- Prior to performing any work occasioned by a Change Order affecting the approved Programming Services, Final Design Specifications or Final Work Plan, the **Customer** will be invoiced for any affected work already in progress and shall be payable as specified in the Payment section below. Invoices will be for the proportionate amount of the fixed costs for work already performed by **Justice Systems**.

e- **Data Conversion Services:**

The **Customer** may purchase from **Justice Systems** Programming Services for the conversion of data from other legacy systems. The **Customer** acknowledges that the ability to convert data and the accuracy of converted data depends upon elements beyond the control of **Justice Systems**. **JUSTICE SYSTEMS** DISCLAIMS ALL WARRANTIES, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE WITH REGARD TO CONVERTED DATA FILES.

Data Cleansing:

The parties understand that an existing data environment may be compromised by a variety of errors such as:

1. Instances of different persons with the same Social Security Number
2. Missing or incorrect financial information
3. Incorrect and inconsistent status information
4. Malformed information (e.g., state code included in city name)
5. Inconsistent and non-standard data formats

Such data errors may have a negative impact upon the quality of the converted data, and therefore the **Customer** may be required to manually cleanse the data.

To the extent reasonable and practical, the approach outlined in the section entitled “*Programming Services*” will be applied for a data conversion. Other data conversion options are also available and **Justice Systems** may be contracted to perform the Services, where appropriate, and in accordance with the Schedule of Standard Professional Service Rates.

The above listed services are not intended to be all-inclusive. **Justice Systems’** responsibility to provide any other services is limited to those matters specifically enumerated in this Agreement, or as may be otherwise agreed to in writing between the parties.

The Schedule of Standard Professional Service Rates is as follows:

Professional Services		Hourly Rate
Executive Management		\$200
Administrative Staff		\$60
Management	Client Manager	\$165
	Project Manager	\$165
Configuration Management		\$145
Domain Specialist		\$155
Sr. Systems Analyst / Programmer		\$155
Programmer		\$145
Quality Assurance		\$145
Technical Writer		\$100
Training Services		Daily Rate

Onsite	Per instructor	\$1,500/day
Justice Systems facility	Per instructor	\$1,000/day

- From time-to-time at Justice Systems' sole discretion these rates may change.
- Travel time and travel expenses related to SERVICES are not included in the above rates and will be charged and invoiced separately.

Payment of Services (non-Maintenance):

- Phase I charges will be billed monthly for Programming Services that are "Time & Material", unless otherwise mutually agreed upon in a fixed price quote.
- Phase I "Time & Material" charges for Programming Services will be itemized on the monthly invoice by "rate type" of the Schedule of Standard Professional Services Rates.
- Travel Expenses / Per Diem Expenses will be the actual/reasonable expenses incurred for each resource and will be invoiced monthly.
- Travel time will be invoiced separately and as "time and materials" in accordance with the Professional Services schedule.
- All travel expenses and travel time is in addition to other costs unless otherwise specifically agreed in writing.
- "Fixed Prices" will include the total costs for **Justice Systems'** development, testing, and delivery of the requested modification(s), the cost of Release Letter and Help Text production, and other costs mutually agreed to by the parties. "Fixed Prices", unless otherwise agreed in writing, do not include travel time or travel expenses.
- Fixed Prices shall be invoiced, as follows:
 - Fifty (50%) percent along with the Purchase Order;
 - Forty (40%) percent at the time of delivery of the first release of the modification;
 - Ten (10%) percent upon acceptance of the modification or within thirty (30) days of its placement into production, whichever first occurs.
- All invoices shall be paid within thirty (30) days of invoice date.

Customer
Initials

Maintenance & Support Services

TERM: Except as may otherwise be specifically stated herein, the Maintenance & Support Services shall begin at the end of the warranty period and shall continue for one year terms with automatic renewal for successive one year periods or until specifically terminated by either party giving thirty (30) days written notice of intent to terminate. Maintenance & Support Services is intended to survive the completion and termination of the underlying Agreement to which it has been made a part. "Definitions" as set forth in the underlying Agreement to which this Maintenance & Support Services has been made a part are not repeated herein, but are hereby incorporated by reference into this instrument as though fully set forth herein.

APPLICABILITY: As used in the Maintenance & Support Services, the definitions set forth in the underlying FullCourt®/FullCourt Enterprise™ and/or FullCase® Agreement shall apply.

SUPPORT PROVIDED: Justice Systems will:

- 1) provide **Customer** with telephone access by which **Customer** may communicate with **Justice Systems** for purposes of seeking technical support of the LICENSED and SUBLICENSED SOFTWARE provided to the **Customer**, but excluding support for modifications, changes or upgrades to interfaces software not specifically and solely developed by Justice Systems (e.g., modifications made to third party software with which FullCourt products have been interfaced);
- 2) provide to **Customer** maintenance of the SOFTWARE covered under this agreement, including maintenance releases of the STANDARD SOFTWARE and CUSTOM SOFTWARE regularly distributed, upgrade versions of the STANDARD SOFTWARE periodically distributed, but shall not include any modifications to either the STANDARD SOFTWARE or the CUSTOM SOFTWARE as may be required due to changes made by third parties to integrated systems, or services or supporting applications or systems, not provided by Justice Systems;
- 3) correct or replace LICENSED and SUBLICENSED SOFTWARE and/or provide SERVICES necessary to remedy any SOFTWARE error which is attributable to Justice Systems or which functions differently than published Justice Systems' documentation, or Justice Systems will provide a reasonable workaround for the error, or Justice Systems will refund the pro-rata pre-paid maintenance and support fees paid by customer under this agreement and terminate the maintenance and support agreement;
- 4) provide **Customer** with remote diagnostic SERVICES for the SOFTWARE.

FEES¹: Maintenance and support is included during the warranty period. After that, maintenance and support under the Maintenance & Support Services will be provided at the price stated in underlying Agreement or in any other accepted document (proposal, invoice, agreement, etc.), or any subsequently issued invoice and shall be paid in advance of the beginning of the covered period. This fee, unless otherwise stated in the underlying Agreement, is for the first year and may be increased in subsequent years at **Justice Systems'** sole discretion. This fee may also be increased should the **Customer** elect to have modifications or customizations incorporated into the STANDARD SOFTWARE. SERVICES for the FullCourt Enterprise Data Dictionary shall be separately provided upon request of **Customer** who will be charged therefor on a per call basis at the then current Standard Professional Services Rate. **Customer** agrees that each call shall be billed in minimum one-half hour increments.

Maintenance and Support shall be for paid for all active LICENSES unless otherwise approved by Justice Systems in writing. Should the **Customer** reduce to total number of active LICENSES for which Maintenance and Support is provided and thereafter reinstate to active status some or all of those LICENSES which had been deactivated, a "reinstatement to active status" fee shall be assessed and paid before reactivation of the LICENSE.

There shall be no refunds or pro-ration of the SOFTWARE maintenance and support fees.

¹ For the purposes of this Agreement, it should be understood that included in the "Fees" is the maintenance and support of the FullCourt Enterprise application. Not covered by this agreement are any support services related to the browser, the operating system and operating environment, backup and restore software, word processing software, and any other software or hardware that was not sold and provided by Justice Systems as a component to the FullCourt Enterprise system. Upgrades and changes to the hardware, operating system or infrastructure are not included and may require additional services that may be provided by Justice Systems in accordance with its then current Standard Professional Service Rates.

CONDITIONS OF SUPPORT: **Customer** acknowledges and agrees that support under the Maintenance & Support Services will not be provided for damage or problems to SOFTWARE caused by fire, smoke, water, vandalism, riots, theft, misuse, accidents, power outages, abuse, any acts of war, or acts of God. **Customer** further acknowledges that this agreement will not cover corrections for difficulties or defects traceable to system changes by **Customer**, alterations to SOFTWARE other than by **Justice Systems**, introduction of incompatible programs, hardware, viruses, worms or any other cause beyond the control of **Justice Systems**.

Any support rendered by **Justice Systems** at **Customer's** request to deal with any problems that lie outside the scope of this Maintenance & Support Agreement shall be billed in accordance with the time and materials rates then in effect by **Justice Systems** at the time the work is completed, together with any travel and expenses incurred in providing such extra support.

Charges for support or work provided to **Customer** by **Justice Systems** that lie outside the scope of the Maintenance & Support Agreement shall be paid within thirty (30) days from the date of billing. Payments not timely made shall bear a penalty of 1 1/2 percent per month until paid.

Services Excluded from Maintenance & Support Services:

It is expressly understood and agreed by **Customer** that **Justice Systems** will not be responsible for performing the following SERVICES:

Training

Support SERVICES do not include any training SERVICES that may be required by **Customer**, including such SERVICES that may be required as a result of enhancements, modifications or upgrades. These SERVICES may be separately purchased at **Justice Systems'** then current Standard Professional Service Rate.

Non-Standard Configuration

Justice Systems may assist, at costs additional to those set forth in this Agreement, with the configuration of any ALTERNATE DATABASE in order to assure that it will operate in conjunction with FullCourt *Enterprise*, but makes no assurances of compatibility.

Hardware

Hardware installation and setup, work station or server setup, fax-modem, scanner or printer installation or setup, local or wide-area networking hardware or setup, back-up system hardware or setup, services related to set up of the networking infrastructure.

Other Software

Supplying, installing, or integrating any other SOFTWARE, including but not limited to operating or networking systems; MIDDLEWARE and database SOFTWARE not defined as part of the Standard Configuration, or word processing systems; nor setup, remote communications SOFTWARE, back-up system SOFTWARE, or any legacy system or other non-FullCourt *Enterprise* application.

VERSIONS SUPPORTED: Support under the Maintenance and Support Services shall be provided only for the most current release or as otherwise communicated in writing by **Justice Systems** to the **Customer** of the Justice Systems provided components as specified in the "FullCourt Enterprise Operating Environment Agreement". Subject to the availability of resources, **Justice Systems**, at its option, will provide maintenance and support for Justice Systems provided components as specified in the "FullCourt Enterprise Operating Environment Agreement" not satisfying this criterion on a time and materials basis.

It may be necessary to install the latest SOFTWARE releases for the licensed program and it may be necessary to update **Customer's** computer hardware, operating systems and/or other SOFTWARE to achieve compatibility with the currently supported release of the licensed program. If **Customer** has not installed any releases that **Justice Systems** has made in the licensed SOFTWARE or is not using a currently supported release of the licensed program, database or necessary MIDDLEWARE, **Justice Systems** may suspend provision of SOFTWARE maintenance and support for the licensed program until **Customer** cures this condition.

At times, releases provided as part of this Maintenance & Support Agreement may require changes to components that support the SOFTWARE, which changes are not included or covered in the SERVICES enumerated by the terms of the Maintenance & Support Services.

Any installation required for an upgrade to a currently supported release of a licensed program, when performed by **Justice Systems**, will be charged to **Customer** at **Justice Systems'** then current hourly rates plus reimbursement for any out-of-pocket costs or expenses incurred by **Justice Systems**. Such installation charges shall be in addition to other fees or charges that may be due.

RELEASES:

- Releases of SOFTWARE modifications will be accompanied by:
 - Distribution of SOFTWARE via **Justice Systems'** FTP site (email notification of placement on the FTP site will be provided);
 - Mailing to the **Customer** of a CD/DVD upon which the SOFTWARE is written;
 - Written Release Notes that include: (1) identification of the **Customer** issues and modifications contained in the SOFTWARE release; (2) specific instructions pertaining to table setup and system setup affected by the release and delivered modifications; (3) other issues which **Justice Systems** determines appropriate for notification to end users;
 - Online Help Text (which will be regularly updated with each release).

It is understood that completion of all modifications will be dependent upon the mutual commitments of the **Customer** and **Justice Systems**. Change Orders, or unforeseeable circumstances may impact actual delivery dates; and, while both the **Customer** and **Justice Systems** will endeavor to perform their individual responsibilities as expeditiously as reasonably possible, delays may occur.

•
TIME OF SUPPORT: Maintenance and support SERVICES provided under this agreement shall be available during the normal working hours of 7:00 a.m. to 5:00 p.m. in Albuquerque, New Mexico excluding weekends, legal holidays, or other days determined by **Justice Systems** by prior notice to **Customer**.

WARRANTIES: EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, **JUSTICE SYSTEMS** DOES NOT WARRANT SERVICES AND SUPPORT PROVIDED FOR AND INCLUDED IN THIS AGREEMENT AND THE **CUSTOMER** HEREBY ACKNOWLEDGES THAT SAID AGREEMENT IS ENTERED INTO AND SAID SERVICES ARE PURCHASED REALIZING THAT NO IMPLIED WARRANTIES ARE MADE OTHER THAN THAT **JUSTICE SYSTEMS** WILL USE REASONABLE EFFORTS TO RESOLVE PROBLEMS, ANSWER QUESTIONS AND HELP **CUSTOMER** OBTAIN SATISFACTORY PERFORMANCE OF THE SOFTWARE.

REMOTE SUPPORT: **Customer** agrees to install and maintain for the duration of this agreement Internet access to the FullCourt *Enterprise* system that is compatible with Justice Systems' remote diagnostics system. **Customer** will pay for installation, maintenance and use of said items. Justice Systems shall use these items in connection with error correction and/or support. Any access by Justice Systems shall be subject to prior approval of **Customer** and in any case access shall be solely for the purpose authorized by **Customer**.

PROPRIETARY RIGHTS: Any changes, additions and enhancements in the form of new or partial programs or documentation as may be provided under this agreement shall remain the proprietary property of Justice Systems.

TERMINATION: In the event of termination of the SOFTWARE license specified above, all maintenance fees or charges payable for the entire term of the Maintenance & Support Services, without notice or demand by **Justice Systems**, shall immediately become due and payable; and, **Justice Systems'** obligations under this agreement shall immediately end. **Justice Systems** may terminate the Maintenance & Support Services in the event of the failure of **Customer** to fulfill its obligations hereunder. **Justice Systems** shall be entitled to payment for the full amount of SERVICES performed under the contract.

GENERAL: This agreement is not assignable without prior written consent of **Justice Systems**. Any attempt by **Customer** to assign any of the rights, duties and obligations of this agreement without such consent is void.

The Maintenance & Support Services can be modified only by a written agreement duly signed by persons authorized to sign agreements on behalf of **Customer** and **Justice Systems**. Variance from the terms and conditions of the Maintenance & Support Services except in writing and signed by those persons authorized to sign for the **Customer** and **Justice Systems** will be of no effect.

If any provision or provisions of the Maintenance & Support Services shall be held to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby. No action regardless of form arising out of this agreement may be brought by either party more than two years after the cause of action has arisen or in the case of non-payment, more than two years from the date of last payment.

Customer
Initials

ADDENDUM A TO FULLCOURT ENTERPRISE AGREEMENT

This Addendum A modifies the terms and conditions in the FULLCOURT ENTERPRISE AGREEMENT (Agreement) between Justice Systems, Inc. (Justice Systems) and the Cheyenne Municipal Court (Customer).

The following terms are added to the Agreement:

1. **GOVERNMENTAL IMMUNITY:** Customer and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of the Agreement as between the parties. Further, Customer fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on the Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.
2. **GOVERNING LAW, JURISDICTION and VENUE:** The construction, interpretation and enforcement of the Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of the Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

The undersigned parties agree that the terms of this Addendum A are added to the Agreement. The parties further agree that the terms of this Addendum A supersede and replace any provisions in the Agreement that are in conflict with or may be in conflict with this Addendum A. Any disputes over which terms apply shall be resolved in favor of this Addendum A.

For good and valuable consideration, hereby acknowledged by the undersigned parties, this Addendum A is entered into by:

ACCEPTED BY:

JUSTICE SYSTEMS, INC.

x _____
(Authorized Signature)

By: _____
Ernie L. Sego, President/CEO

(Type or Print Name)

(Date)

(Title)

(Date)